



Appeal Decision

Site visit made on 25 August 2026

by R Major BSc (Hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 14 September 2026

Appeal Ref: 6010668

103 Oxford Street, London W1D 2HF

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 (as amended) against a failure to give notice within the prescribed period of a decision on an application for express consent to display an advertisement.
- The appeal is made by Mr Justin Myers of Blow Up Meida UK LTD against the City of Westminster Council.
- The application Ref is 26/00918/ADV.
- The advertisement proposed is described as temporary decorative scaffold shroud wrap showing a printed 1:1 image of the building facade with an inset advertising area on the Oxford Street frontage measuring 13.5 x 7.2 metres (optional external lighting of advertising area).

Decision

1. The appeal is allowed and express consent is granted for the display of the temporary decorative scaffold shroud wrap showing a printed 1:1 image of the building facade with an inset advertising area on the Oxford Street frontage measuring 13.5 x 7.2 metres at 103 Oxford Street, London W1D 2HF in accordance with the terms of the application, Ref 26/00918/ADV, dated 11 February 2026. The consent is for a period of 9 months and is subject to the five standard conditions set out in Schedule 2 of the 2007 Regulations and the following additional conditions:-
 - 1) The express consent hereby granted shall be for a period of 9 months, which shall begin on the date of commencement of the display or 6 months from the date of this decision, whichever is sooner.
 - 2) Written notice shall be given to the Council of the date of the commencement of the display of the advertisement hereby permitted within 7 days of its commencement.
 - 3) The advertisement and surrounding scaffolding shroud hereby granted shall be removed at the end of the period specified in Condition 1.
 - 4) The inset advertising area hereby granted shall not exceed 13.5 x 7.2 metres and shall only be displayed at the same time as the 1:1 shroud image.
 - 5) The advertisement hereby permitted shall not display any moving, sequential or apparently moving images.
 - 6) Notwithstanding the details shown on drawing number: PY4947-SCH1-007 (Titled: Standard Specification), the external lights shall not be installed and the advertisement hereby granted shall be non-illuminated.

Preliminary Matters

2. The Advertisements Regulations require that decisions are made only in the interest of amenity and public safety. Therefore, whilst I have taken into account the City Plan 2019-2040 (the City Plan) policies that the Council considers to be relevant, these have not been decisive in my determination of this appeal.
3. Subsequent to the Council issuing its decision the revised National Planning Policy Framework (the Framework) was published on 17 August 2026. The main parties were given the opportunity to comment on the implications of the revised Framework, and I have had regard to the revised Framework insofar as it is relevant in consideration of amenity and public safety.
4. The appeal site is within the Soho Conservation Area (the CA) and in accordance with the statutory duty set out in Section 72(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (the Act), I have paid special attention to the desirability of preserving or enhancing the character or appearance of the CA.

Background and Main Issue

5. The appeal was submitted following the Council's failure to give notice of its decision within the prescribed period. The Council has provided a draft officer report and an appeal statement explaining the reasons why it would have refused the advertisement consent should it have made a decision on the proposal.
6. The Council has not suggested the proposal would affect public safety. Based on the evidence before me and my observations on site, I see no reason to disagree.
7. The main issue is therefore the impact of the proposal upon the visual amenity of the area.

Reasons

8. I observed that the significance of the CA as a whole derives from its dense pattern of narrow streets and courtyards; its vibrant, diverse mix of buildings including residential and commercial uses; as well as the architectural interest in its varied built form which comprises of both modern and historic buildings.
9. The appeal relates specifically to an attractive, six-storey property located at the corner of Oxford Street and Great Chapel Street, at the northern end of the CA. I observed that this area of the CA is commercial in nature and consisted of a large number of retail units at ground floor level. These retail units include a variety of advertisement designs, and there were a vast number of pedestrians moving passed the appeal site along Oxford Street. The animation of these activities gives this part of the CA a busy and vibrant commercial character, and are an important part of the significance of the whole CA.
10. The appeal building is identified in the Soho & Chinatown Conservation Area Audit as one which makes a positive contribution to the CA. In this regard, the appeal building is finished in Portland stone and has a chamfered corner facing the junction. Whilst the ground floor retail use includes large display windows and adverts, the upper floor windows have a strong vertical emphasis, with third floor windows being noticeably taller than the other windows. I also observed decorative stone window pediments between the third and fourth floor windows. The Council identify the building as an undesignated heritage asset.

11. To the west, the appeal property is adjoined by No. 105 – 109 Oxford Street, which is a grade II listed building. I observed that the significance of this listed building, in part, derives from its historic and architectural merit. It is a five-storey building (with attic) and is faced in beige terracotta. It has a distinctive two window wide centrepiece which includes arches, pediments and portrait medallions of King George IV and Queen Victoria.
12. Although at the time of my site visit there was no scaffolding around the appeal building, the submission is accompanied by a building condition survey which details that maintenance and repair works are required. The appeal proposal seeks temporary advertisement consent to erect a wraparound shroud, with an advertisement inset, that would hide the scaffolding whilst these repair works are undertaken.
13. In this regard, the Planning Practice Guidance states that buildings which are being renovated or are undergoing major structural work and which have scaffolding or netting around them may be considered suitable as temporary sites for shroud advertisements or large ‘wrap’ advertisements covering the face, or part of the face, of the building¹.
14. At section 8.3, Westminster’s Street and Spaces Public Realm Guidance Supplementary Planning Document (2025) (SPD) provides guidance on signs and adverts, stating that significant advertising on scaffold shrouds should generally be resisted as they cause harm to general amenity. My attention has not however been drawn to any definition of what is meant by “significant advertising” and this is therefore a matter of planning judgement.
15. This section of the SPD also provides specific guidance on “shrouds”, and I acknowledge that it is generally restrictive of large advertisements on shrouds, particularly above ground floor level. Nevertheless, I find the SPD does allow some flexibility and judgement in respect of the circumstances of each case with regard to the size and amount of advertising that may be permitted for a temporary period.
16. The proposed shroud would enclose the floors above ground floor level on both the Oxford Street and Great Chapel Street elevations of the appeal building. Its 1:1 design would replicate the appearance of the upper floors of the building and allow for an appreciation of its architectural features.
17. The advertisement inset would cover a section of the building at first and second floor levels, with the advertisement wrapping around the corner of Oxford Street and Great Chapel Street. This advertisement would therefore partly obscure some elements of the building’s attractiveness that would be depicted on the shroud.
18. Nevertheless, according to the evidence before me the advertisement inset would cover approximately 15% of the shroud and would therefore represent a modest part of the overall installation. Consequently, I find that it would not totally overwhelm or significantly detract from the 1:1 depiction of the host building on the remaining shroud.
19. I also acknowledge there are limited examples of advertisements above first-floor level on the surrounding buildings. However, given the vibrant and animated commercial character of the area, and importantly the temporary nature of the

¹ Paragraph: 005 Reference ID: 18b-005-20140306

advertisement whilst repair works are being undertaken, the appearance of the 1:1 designed shroud and advertisement panel would provide some visual interest for the many pedestrians that would pass the appeal property during these repair works.

20. Overall, I find the proposed shroud, with advertisement inset, would be preferable to the use of bland and intrusive scaffolding and netting which I observed at other buildings that were undergoing works within the wider vicinity during my visit. The proposal would therefore assist in better revealing the significance of the host building, the adjoining listed building and the CA, during these repair works.
21. I note the submission includes details of “optional” external lighting above the inset by way of 5no. down lights. However, I have been provided with limited information in respect of the specification of these proposed lights and my attention has not been drawn to any examples of external lighting on the upper floors of surrounding buildings.
22. Moreover, the proposed down lights would add visual clutter and when in use I find this optional external lighting would unacceptably increase the visual prominence of the proposed advertisement inset on the street scene, particularly in hours of darkness. I therefore find it reasonable and necessary to include a condition preventing the installation of the proposed optional external lights. In the interests of clarity, I have also removed the words “*optional external lighting of advertising area*” from my formal decision.
23. In view of all the above, and subject to a condition preventing the advertisement from being externally illuminated, I conclude that the temporary proposal would be preferable to, and less harmful to visual amenity than, the use of traditional scaffolding materials whilst the repair works to the building are taking place. The temporary proposal would therefore not harm visual amenity; would preserve the character and appearance of the CA; and would not harm the significance of the host property or the adjoining listed building whilst these repair works are being undertaken.
24. In reaching my conclusion I have taken into account Policies 42, 44 and 48 of the City Plan, and Policies DP3, HE5, HE6, HE7 and HE9 of the Framework as material insofar as they relate to amenity. These policies together seek to ensure, amongst other things, that developments positively contribute to Westminster’s townscape and streetscape; respond to their context so that they integrate with and enhance their surroundings; and conserve the significance of designated and non-designated heritage assets. Given that I have concluded that the proposal would not harm visual amenity, it accords with these policy objectives. The proposal would also satisfy the requirements of s72(1) of the Act.

Conditions

25. In addition to the five standard conditions set out in the Advertisement Regulations it is necessary to define the period of the consent to provide clarity (1). For the same reason it is necessary to require the Council to be notified in writing of the commencement date (2), and to specify when the advertisement and surrounding scaffolding shroud must be removed (3).
26. In the interest of visual amenity it is necessary to apply conditions to specify the size of the advertisement inset and that the advertisement inset shall only be displayed at the same time as the 1:1 designed shroud (4); that no moving images

are used (5); and that the optional external lights are not to be installed and that the advertisement shall be non-illuminated (6).

Planning Balance and Conclusion

27. For the reasons given, and having regard to all other matters raised, the appeal is allowed.

R Major

INSPECTOR